



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9011 (EXTENSION)
SECOND REVISION April 30, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9011 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 27 1993

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Van Leer Containers, Inc.
Cleveland, OH

June 2, 1993



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400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 9011
(FIRST REVISION)

1. Van Leer Containers, Inc. (VLCI), Chicago, Illinois, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes certain DOT Specification 5, 6 and 17 series drums to be constructed of stainless steel, nickel or monel and when so constructed to be exempt from certain steel drum specification test requirements, for shipment of those commodities presently authorized for each drum, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Inland Steel Container's application dated January 13, 1983, and VLCI's application dated February 11, 1985, submitted in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Those commodities presently authorized to be packaged in DOT Specification 5, 5A, 5B, 6B, 6C, 6J, 17C, 17E, 17F, 17H drums.

4. PROPER SHIPPING NAME (49 CFR 172.101). As specified in 49 CFR 172.101, as appropriate.

5. REGULATION AFFECTED. 49 CFR 175.3; 178.80; 178.81; 178.82; 178.98; 178.99; 178.100; 178.115; 178.116; 178.117; 178.118.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo-only aircraft.

7. SAFETY CONTROL MEASURES. Packagings conforming to DOT Specification 5, 5A, 5B, 6B, 6C, 6J, 17C, 17E, 17F or 17H, except manufactured of stainless steel, nickel or monel, do not require periodic drop and hydrostatic tests when drum has satisfactorily met prescribed tests at the original start of production. Satisfactory test results must be obtained on samples of subsequent drums that have been altered in design or construction. Samples tested must be retained until further tests are made or for two years, whichever period is shorter.

8. SPECIAL PROVISIONS.

a. Shippers may use the packagings covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel and aircraft used to transport packages covered by this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. May 15, 1987.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

JUN 7 1985

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: USCG, FAA, FHWA, FRA